CORAM: HER WORSHIP BIANCA GYAMERA-BEEKO MAGISTRATE SITTING AT THE DISTRICT COURT MAMPONG-AKWAPIM ON 27TH DAY OF JUNE, 2025.

SUIT NO.: A2/232/24

RICHARD SAMUEL AMPONSAH ……. PLAINTIFF

VRS.

KWABENA TETE & 1 or ……. DEFENDANT

Plaintiff present

Defendants absent

JUDGMENT.

By a writ of summons filed on 16th September, 2024, the Plaintiff in this matter seeks the following reliefs:

1. Recovery of an amount of GHS105,000 being expenses incurred in drawing the cadastral plan and clearing 50 acres of land at Asubeaka near Okrakwadwo.
2. Cost.

The 1st Defendant appeared in court on 9th October, 2024 and represented the 2nd Defendant. He pleaded liable but only to GHS5,000 and to the claim for cost. With the consent of parties, the matter was referred to court-connected ADR but same proved unsuccessful and was therefore referred back to the court for trial.

The Plaintiff's case is that sometimes he acts as an agent for people looking to sell or buy land. In January 2023, the 1st Defendant informed the Plaintiff that the 2nd Defendant was looking for someone to buy his family land at Asubeaka near Okrakwadwo-Akuapem. Plaintiff told 1st Defendant that the land had to be cleared so it could be measured, and how much it would cost to get that done. The Defendants did not have that money so they asked the Plaintiff to pre-finance the clearing of the land. They agreed that the land would be sold for GHS13,000 per acre. The Defendant would receive GHS11,000 and the Plaintiff would keep GHS2,000 as his commission. Pursuant to this agreement, the Plaintiff cleared the land and found a buyer who purchased 50 acres of land. The purchasers paid GHS605,000 into

the 2nd Defendant's account. The Defendants are to pay the Plaintiff GHS105,000 being GHS100,000 as the commission for 50 acres of land and GHS5,000 as the cost incurred in clearing the land and undertaking the necessary tasks to make the land ready for sale. In spite of all efforts by the Plaintiff, the Defendants have refused to pay this money hence the present action.

Issue

The issue for determination by this court is whether there was an agreement between the Plaintiff and Defendants that entitled the Plaintiff to a commission of GHS100,000.

Evidentiary burden

The principle is that he who alleges must prove. Section 14 of the Evidence Act, 1975 (Act 323) provides that:

> *Except as otherwise provided by law, unless and until it is shifted a party has the burden of persuasion as to each fact the existence or non-existence of which is essential to the claim or defence he is asserting*.

The Supreme Court in the oft cited case of Serwah v Kesse (1960) GLR 227 stated that "***the general rule, of course, is that that the onus probandi lies on the party who substantially asserts the affirmative of the issue***".

The Plaintiff is therefore under an obligation to prove the facts that will enable the court conclude that his averments are true. This being a civil matter, the Plaintiff is required to prove his case upon a preponderance of probabilities in accordance with section 12 of the Evidence Act 1975 (NRCD 323).

Analysis.

The Plaintiff testified for himself and called two witness, Steven Kwaku Yeboah (PW1) and Addo Kofi (PW2) to testify in support of his case.

PW1 testified that about three months ago Plaintiff, 1st Defendant and one other person came to see him because he is the Mmrantehene. They told him that they had engaged the

Plaintiff to sell land for GHS11,000 and that he had sold the land for GHS13,000. They told him that the Plaintiff had also used his money for the surveying and demarcating the land. PW1 had 1st Defendant call the 2nd Defendant who confirmed this was true but 2nd Defendant explained that the money had been paid to the Abusuapanyin. He assured PW1 that he would call the Abusuapanyin and and collect the Plaintiff's money for him. The 1st Defendant did not cross-examine PW1 and the 2nd Defendant only asked him two questions. The first question put it to the Plaintiff that it was not true that the they quoted GHS11,000 to the Plaintiff and then sold the land for 13,000. The second question put it to the Plaintiff that he did not hire the services of a surveyor. The Plaintiff insisted that both statements were true.

The testimony of PW1 was that about three months ago, Plaintiff, 1st Defendant and one other person came to see him in his capacity as MMrantehene. 1st Defendant and the other person told him that they had offered land for sale at GHS11,000 but the Plaintiff had sold the land for GHS13,000. Plaintiff had used his money for surveying and demarcating the land. He testified that he had the 1st Defendant call the 2nd Defendant and 2nd Defendant confirmed that this was true but that the money was now with the Abusuapanyin. They said they would meet with the Plaintiff at Aprede and invite the Abusuapanyin so that they would explain to the Abusuapanyin and collect the Plaintiff's money for him. Neither the 1st Defendant not 2nd Defendant cross-examined this witness.

The testimony of PW2 was that 1st Defendant informed him that he had been asked by his abusuapanyin to sell land for him and so he had informed the Plaintiff. According to his testimony, 1st Defendant called the Abusuapanyin and 2nd Defendant and he and the Plaintiff spoke with them. In that conversation, the Abusuapanyin and 2nd Defendant indicated that they would accept GHS10,000 per acre of land. It was therefore agreed that the Plaintiff would GHS2,000 as his commission for each acre he sold. From his response to a question posed by the 1st Def under cross-examination, it appears that the Abusuapanyin and the 2nd Defendant at a point changed their minds and said they would be selling each acre fro GHS11,000. He also testified after the Plaintiff had found buyers willing to purchase

the land for GHS13,000 and introduced them to the defendants, the defendants told them they were now selling the land for GHS13,000. The buyers on the blind side of the Plaintiff paid the Defendants even though the money should have been paid to the Plaintiff as agent for him to deduct his commission and pay the rest of the money to the defendants. As with the Plaintiff, this witness was not cross-examined extensively and he did not make admissions inconsistent with or adverse to his testimony.

Only the 1st Defendant testified. He admitted in his testimony that everything the Plaintiff had said was true except the bit about the commission of GHS100,000. In the same breath, the 1st Defendant also testified that he agreed with the Plaintiff that the Plaintiff would be entitled to a commission of GHS2,000 per acre of land. This is captured in his testimony where he stated that:

"*The GHS100,000 was an arrangement between the myself and the Plaintiff*".

The 1st Defendant tried to explain this inconsistency by saying that the owner of the land was never aware of this agreement. He explained that when they informed the owner that they would be selling the land for GHS13,000, the owner replied that he himself had found a buyer willing to purchase the land for GHS13,000 per acre. The owner asked them to match the price if they were interested which meant they would have to find someone to buy it for GHS15,000. Under cross-examination, the following exchange took place.

> Q. Am I related to you?
>
> A. No.
>
> Q. Am I the one who asked you if you were selling land or are you the one who came to inform me?
>
> A. I informed you
>
> Q. Do you believe that anyone works without expecting to make a profit?
>
> A. No.

Like the Plaintiff, I struggle to see how the Defendants can maintain that they contracted the services of the Plaintiff to clear, survey, and demarcate the land at his own expense and also find a buyer to purchase it but they did not agree that Plaintiff would be entitled to a

commission. Indeed, the evidence before this court is to the contrary. The evidence before this court shows that the Defendants had the authority of their head of family to find an agent who could sell their land for them. The evidence of PW2 shows that the Plaintiff satisfied himself that the Abusuapanyin actually intended to sell the land by speaking with him on phone before proceeding to clear and demarcate the land and find a buyer. The evidence further shows that the land transaction has been successfully concluded between the buyers the Plaintiff found on one hand and the defendants and their Abusuapanyin on the other hand. Further more, the evidence of PW1 shows that the Defendants admitted that they had an agreement with the Plaintiff that he would be entitled to GHS2,000 per acre of land he sold, and they promised to take steps to get him his money. The failure of the Defendants to put it to PW1 that his testimony was false when he mounted the box, when they had previously cross-examined the Plaintiff and subsequently cross-examined PW2 leads me to believe that PW1's testimony is true.

The uncontroverted evidence before this court is that the Plaintiff surveyed and demarcated the land and subsequently found buyers. It was these very same buyers that the Plaintiff found that eventually bought the land from the Defendants. To my mind, it appears that after the Plaintiff found the buyers for the land and introduced them to the Defendants, the Defendants tried to outsmart him by agreeing with the buyers to pay the money directly to them. It was most unfair for the Defendants to encourage the Plaintiff to spend his time and money to clear their land, survey, and demarcate it in readiness for sale at a the price of GHS11,000 per acre only to change their minds and threaten to sell it someone else if the Plaintiff was unable to find someone to buy the land for GHS13,000. What makes it even worse is that the Defendants sought to resile from their agreement after the Plaintiff had already found buyers at the price previously agreed by the parties. If the Defendants could find buyers for the land just as easily, why did they sell the land to the exact buyers that the Defendant through his own means located?

Having considered the evidence before me, I find that the Defendants had the authority of the family to negotiate terms and conditions for the sale of the land with Plaintiff. Upon a

preponderance of probabilities, I am satisfied that there was indeed an agreement between the Plaintiff and the Defendants that he would be paid a commission of GhS2,000 per acre of land he sold. As the 1st Defendant has admitted, the Plaintiff held up his end of the bargain. Consequently, I find that the Plaintiff is entitled to the commission of GHS100,000.

Final orders

1. The Defendants are ordered to pay the Plaintiff GHS5,000 being cost of the survey works carried out on the land.
2. The Defendants are ordered to pay the Plaintiff GHS100,000 being his commission on the 50 acres of land he found a buyer to purchase.
3. Cost of GHS5,000 is awarded against the Defendants in favour of Plaintiff.

SGD.

H/W BIANCA GYAMERA-BEEKO